

United States Court of Appeals for the Fourth Circuit

Notice That No Reply Brief Will Be Filed

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

No. SYN-CA4-26-CV-4102 Appellate ECF No. 7 — Filed May 29, 2026

Appellant Asterglen Freight Software, Inc. notifies the Court that it will not file a reply brief. Appellees filed their response on May 8, 2026. Under the briefing order and Federal Rule of Appellate Procedure 31, Asterglen's reply was due May 29. This notice is timely and closes Asterglen's principal briefing.

Asterglen relies on the jurisdictional and merits positions stated in its opening brief. It preserves its contention that the district court's grant of its Rule 54(b) motion, considered with the motion and separate judgment, permits review. It also preserves its alternative acknowledgment that, if the express determination is indispensable and absent, this Court should dismiss and remand without reaching the contract merits or vacating the January 12 partial-summary-judgment order.

Asterglen's decision not to reply is not a concession concerning finality, claim relationship, setoff, Section 9.2, or the summary-judgment record. The Court may decide the threshold issue from the entered papers and the parties' principal briefs. Asterglen requests no extension, supplemental briefing, or oral argument through this filing.

I certify that this notice was submitted electronically and served on all counsel of record on May 29, 2026. Filed for Asterglen Freight Software, Inc. by its appellate counsel.